BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **PLAINTIFF'S ADMINISTRATIVE MOTION — ORDER DIRECTING DAG HAIYANG A. LI TO ACCEPT SERVICE FOR MEZA-GONZALEZ** Civil L.R. 7-11; Fed. R. Civ. P. 4(e)(1), 4(m); Cal. Code Civ. Proc. § 413.30 Judge: Hon. Ajay S. Krishnan Related: 4:26-cv-05953-ASK

TO THE COURT, TO DEFENDANT JOSE MELANO, AND TO DEPUTY ATTORNEY GENERAL HAIYANG A. LI:

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, moves under Civil Local Rule 7-11, Federal Rule of Civil Procedure 4(e)(1) and 4(m), and California Code of Civil Procedure section 413.30 for an order directing Deputy Attorney General Haiyang A. Li to accept service of process on behalf of Defendant Santiago Meza-Gonzalez. The facts are in the accompanying declaration.

I.

THE SERVICE GAP

Melano has been served. Meza-Gonzalez has not. Both are California Highway Patrol officers. Both had identifiable duty stations on the summonses this Court issued August 10, 2026 (Dkt. 3). Process server Clifford Black served Melano on August 14, 2026, at CHP South Sacramento, 6 Massie Court, through Officer Reed, who is designated to accept process for the Patrol at that station. The AO 440 return was filed as Dkt. 5-1 and entered August 31, 2026 as Document 12 after this Court related the case to *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and reassigned it as No. 4:26-cv-08271-ASK. This motion does not touch that service.

Meza-Gonzalez has not been produced at CHP Modesto Area, 4030 Kiernan Avenue — the address on his issued summons and his assigned post. Plaintiff's August 13 Stanislaus County Sheriff SER-001 produced no Rule 4(l) return. A private process-server packet went to the same station on August 25. The papers stop at the duty station. The officer is not produced. This is the second case on this November 1, 2024 incident in which his service has lagged behind Melano's. In Alameda Superior Court No. 26CV168913, the State and Melano were served March 25, 2026; Meza-Gonzalez required a court-ordered extension to May 4, 2026.

II.

DAG LI HAS REPRESENTED THESE OFFICERS THROUGHOUT

Haiyang A. Li, Deputy Attorney General, 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, Haiyang.Li@doj.ca.gov, has appeared for Meza-Gonzalez and Melano — and for the State and the Patrol — in every civil case on this incident.

1. *Newanforbi v. State of California / CHP et al.*, E.D. Cal. No. 2:25-cv-01460-DC-CSK. Li filed the December 10, 2025 Rule 12(b)(6) motion and the January 5, 2026 reply for the

State, CHP, Meza-Gonzalez, and Melano. Plaintiff served the April 21, 2026 Objections and July 7, 2026 Notice of Supplemental Authority on him. On April 9, 2026, Li consulted those same clients on 28 U.S.C. § 636(c) consent. That case was dismissed without prejudice August 15, 2026, after this action was filed.

2. *Newanforbi v. Meza-Gonzalez et al.*, Alameda Super. Ct. No. 26CV168913. Li noticed a demurrer April 2, 2026; met and conferred April 9; negotiated and filed a stipulated stay April 13–14; and in June 2026 opposed the U-visa certification motion for the same defendants. That case was dismissed without prejudice August 15, 2026.

3. *Newanforbi v. Serrato*, N.D. Cal. No. 4:26-cv-05953-ASK. Li is counsel of record for Captain G. Serrato — these officers' commander — before this Court, on claims from the same incident. He filed Serrato's motion to dismiss August 26, 2026 (Dkt. 18). This Court related the actions August 24, 2026.

Li already has actual notice of this lawsuit, already has a lawyer-client relationship with this officer on this incident, and already appears before this Court on the related case. The remaining gap is a Rule 4 return as to the one officer who has not been produced at his station.

III.

THE COURT MAY DIRECT THIS MANNER OF SERVICE

Rule 4(e)(1) permits service by following California law. Section 413.30 provides that the court "may direct that summons be served in a manner which is reasonably calculated to give actual notice to the party to be served and that proof of such service be made as prescribed by the court." That is the constitutional floor as well. *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). The Ninth Circuit approves alternative service when ordinary methods have not finished the work, so long as the method is reasonably calculated to give notice. *Rio*

Properties, Inc. v. Rio Int'l Interlink, 284 F.3d 1007, 1016-17 (9th Cir. 2002).

Directing Li to accept the summons and the operative First Amended Complaint, and treating delivery to him at the Spring Street address and email he uses as counsel for these officers, is reasonably calculated to give Meza-Gonzalez actual notice. Li has been this officer's lawyer on this incident since at least December 2025. Plaintiff is not asking the Court to treat Li as an already-appointed Rule 4(e)(2)(C) agent. Li has not appeared in *this* action, because Meza-Gonzalez has not been served. Plaintiff asks the Court to *direct* that service be completed by delivery to the lawyer who has represented this defendant throughout. That is the least intrusive way to close a gap duty-station service has not closed.

Civil Local Rule 7-11 is the right vehicle. Completing Rule 4 as to one defendant so the related cases can move on the same calendar is a miscellaneous administrative matter. A 35-day noticed motion would add a month of delay the Court can avoid on the papers.

A stipulation could not be obtained before filing because Li has not appeared here. Plaintiff is serving this motion on him concurrently at the address and email he uses in *Serrato*, and invites a stipulation that he will accept service. If he stipulates, the proposed order can enter as agreed. If he does not, the Court should grant the motion.

IV.

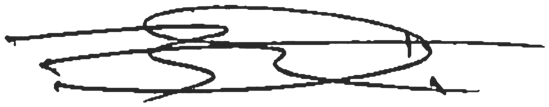
RELIEF REQUESTED

Plaintiff requests that the Court: (1) direct that DAG Li is authorized and ordered to accept service on behalf of Meza-Gonzalez; (2) provide that Plaintiff's delivery to Li, by email at Haiyang.Li@doj.ca.gov and first-class mail at 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, of the issued Meza-Gonzalez summons (Dkt. 3), the operative First Amended Complaint (Dkt. 5), and the CMC/ADR order (Dkt. 4), constitutes completed service

under Rule 4(e)(1) and section 413.30 as of the email date; (3) direct Plaintiff to file a Rule 4(l) proof of that delivery within seven days; (4) alternatively, authorize the same delivery as alternative service, or extend Rule 4(m) for good cause; and (5) confirm that Melano's completed service is unaffected. A declaration, Exhibits A through C, and a proposed order accompany this motion.

Dated: September 1, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **DECLARATION OF BRENDAN NGWA NFORBI ISO ADMINISTRATIVE MOTION** Civil L.R. 7-11; Fed. R. Civ. P. 4(e)(1), 4(m); Cal. Code Civ. Proc. § 413.30 Judge: Hon. Ajay S. Krishnan Related: 4:26-cv-05953-ASK

I, BRENDAN NGWA NFORBI, declare as follows:

1. I am the Plaintiff in this action. I am over eighteen years of age. I make this declaration from my personal knowledge in support of Plaintiff's Administrative Motion for an Order Directing Deputy Attorney General Haiyang A. Li to Accept Service of Process on Behalf of Defendant Santiago Meza-Gonzalez. If called, I could and would testify competently to these facts.

2. This action arises from a November 1, 2024 encounter with California Highway Patrol Officers Santiago Meza-Gonzalez, badge 023295, and Jose Melano, badge 023054, on Interstate 580 East in Livermore. The operative pleading is the First Amended Complaint filed August 17, 2026 (Dkt. 5).

3. The Clerk issued summonses for both officers on August 10, 2026 (Dkt. 3). Meza-Gonzalez's summons is directed to the CHP Modesto Area duty station, 4030 Kiernan Avenue, Modesto, California 95356. Melano's summons is directed to CHP South Sacramento Area, 6 Massie Court, Sacramento, California 95823.

4. On August 13, 2026, I submitted a SER-001 request to the Stanislaus County Sheriff Civil Division asking that office to serve Meza-Gonzalez at the Modesto Area duty station, and a SER-001 request to the Sacramento County Sheriff asking that office to serve Melano at South Sacramento.

5. Melano was served on August 14, 2026. Process server Clifford Black, owner of C&P Process Server, delivered the summons to Officer Reed at 6 Massie Court. The AO 440 return states that Officer Reed is designated by law to accept service of process on behalf of the California Highway Patrol at that station. That return was filed August 17, 2026 as Dkt. 5-1. The clerk-stamped original was entered August 31, 2026 as Document 12 after this action was related to *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and reassigned to this Court as No. 4:26-cv-08271-ASK.

6. No Rule 4(l) return has been filed as to Meza-Gonzalez. The Stanislaus SER-001 did not produce a filed return. On August 25, 2026, I prepared a private process-server packet for the same Modesto Area duty station — issued summons, operative First Amended Complaint, notice identifying that complaint, and the Court's CMC/ADR order. Defendant has not been produced for personal service at that station. He has not made himself available there. The duty-station method that completed service on his partner has not completed service on him.

7. I have personal knowledge of the same pattern in the earlier Alameda Superior Court action, No. 26CV168913. The State of California / CHP and Melano were served in that case

on March 25, 2026. Meza-Gonzalez was not. I had to apply ex parte for an extension of time to serve him. The court extended the deadline to May 4, 2026.

8. Deputy Attorney General Haiyang A. Li has been the lawyer for these officers on this incident throughout. In the Eastern District action, No. 2:25-cv-01460-DC-CSK, he filed the December 10, 2025 motion to dismiss and the January 5, 2026 reply on behalf of the State, CHP, Meza-Gonzalez, and Melano. I served my April 21, 2026 Objections and July 7, 2026 Notice of Supplemental Authority on him. On April 9, 2026, I spoke with him by telephone about the Alameda demurrer; he agreed in principle to a stay of that case and said he would consult his clients, including these officers, on magistrate-judge consent in the Eastern District action.

9. In the Alameda action he circulated a draft stay stipulation on April 13, 2026, accepted my counter-draft on April 14, and caused the stipulation to be filed the same day. In June 2026 he opposed my U-visa certification motion in that case on behalf of the State, CHP, Meza-Gonzalez, and Melano.

10. In the related action before this Court, *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, Li is counsel of record for Captain G. Serrato. He filed the August 26, 2026 motion to dismiss (Dkt. 18). I have served papers on him in that case at 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, and at Haiyang.Li@doj.ca.gov.

11. Li has not appeared in this action. I have not been able to obtain a stipulation from him before filing this motion, because he is not counsel of record here while Meza-Gonzalez remains unserved. I am serving this motion on him concurrently at the Spring Street address and the email address above, and I request that he stipulate to accept service for Meza-Gonzalez. If he does, I will so advise the Court.

12. I am also serving this motion by first-class mail on Melano at the South Sacramento duty station where he was served, and I am sending a courtesy copy to Meza-Gonzalez at the Modesto Area duty station.

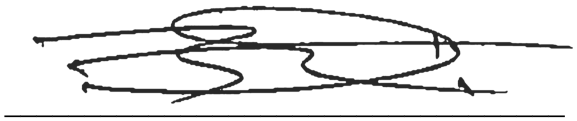
13. I am not asking the Court to disturb Melano's completed service. I am asking the Court to close the remaining Rule 4 gap by directing the lawyer who has represented Meza-Gonzalez on this incident to accept the papers.

14. True and correct copies of the caption pages of those filings are attached as Exhibit A (Eastern District motion to dismiss, December 10, 2025, naming Li as attorney for Meza-Gonzalez and Melano), Exhibit B (Alameda opposition to the U-visa certification motion, naming Li as attorney for the same defendants), and Exhibit C (Serrato motion to dismiss, August 26, 2026, naming Li as counsel of record for Captain Serrato).

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on September 1, 2026, at San Jose, California.

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

EXHIBIT

A

Caption Page — Eastern District Motion to Dismiss

Newanforbi v. State of California / CHP et al.
E.D. Cal. No. 2:25-cv-01460-DC-CSK — filed December 10, 2025
Haiyang A. Li, attorney for Meza-Gonzalez and Melano

ROB BONTA, State Bar No. 202668
Attorney General of California
ELIZABETH S. ANGRES, State Bar No. 179523
Supervising Deputy Attorney General
HAIYANG A. LI, State Bar No. 288063
Deputy Attorney General
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendants State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **STATE OF CALIFORNIA; CALIFORNIA HIGHWAY PATROL; OFFICER SANTIAGO MEZA-GONALEZ (#023295); OFFICER MELANO (#023054),** Defendants.	Case No. 2:25-cv-01460-DC-CSK **DEFENDANTS' NOTICE OF MOTION AND MOTION TO DISMISS COMPLAINT WITH MOTION TO STRIKE; MEMORANDUM OF POINTS AND AUTHORITIES** Date: January 16, 2026 Time: 1:30 p.m. Courtroom: 10 Judge: District Judge Dena Coggins Trial Date: Not Set Action Filed: May 27, 2025

NOTICE IS HEREBY GIVEN that on January 16, 2026, at 1:30 p.m., in Courtroom 10 of the above-entitled Court, located at 501 "I" Street, Sacramento, California, Defendants State of California, Santiago Meza-Gonzalez and Jose Melano (collectively "Defendants") will and hereby do move this Court for an order dismissing Plaintiff's Complaint, with prejudice, on the following grounds:

EXHIBIT

B

Caption Page — Alameda U-Visa Opposition

Newanforbi v. Meza-Gonzalez et al.
Alameda Super. Ct. No. 26CV168913 — June 2026
Haiyang A. Li, attorney for Meza-Gonzalez and Melano

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General
HAIYANG A. LI
Deputy Attorney General
State Bar No. 288063
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Telephone: (213) 269-6404
Fax: (916) 731-2120
E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendants State of California, acting by and through the California Highway Patrol, Santiago Meza-Gonzalez and Jose Melano

Exempt from Filing Fees Pursuant to Gov. Code Section 6103

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **OFFICER SANTIAGO MEZA-GONZALEZ #023295, INDIVIDUALLY; OFFICER JOSE MEANO #023054, INDIVIDUALLY; STATE OF CALIFORNIA; AND DOES 1-10, INCLUSIVE,** Defendants.	Case No. 26CV168913 **DEFENDANTS' OPPOSITION TO PLAINTIFF'S MOTION FOR U-VISA CERTIFICATION** Date: June 18, 2026 Time: 2:30 p.m. Dept: 518 Judge: The Honorable Mark Fickes Trial Date: None Set Action Filed: February 4, 2026

EXHIBIT

C

Caption Page — Serrato Motion to Dismiss

Newanforbi v. Serrato
N.D. Cal. No. 4:26-cv-05953-ASK — filed August 26, 2026 (Dkt. 18)
Haiyang A. Li, counsel of record for Captain G. Serrato

`ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General
HAIYANG A. LI
Deputy Attorney General
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E-mail: Haiyang.Li@doj.ca.gov
Attorneys for Defendant
Captain G. Serrato, in both his individual and official capacities

IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **CAPTAIN G. SERRATO in his individual and official capacities as Commander, Dublin Area, California Highway Patrol.** Defendants.	4:26-cv-05953-ASK **DEFENDANT CAPTAIN G. SERRATO'S NOTICE OF MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT AND/OR MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES** Date: September 16, 2026 Time: 1:30 p.m. Courtroom: Judge: Magistrate Judge Honorable Ajay Krishnan. Trial Date: None Set Action Filed: July 21, 2026

NOTICE IS HEREBY GIVEN that on September 16, 2026, at 1:30 p.m., in the above-entitled Court, located at 1301 Clay Street, Oakland, California, Defendant Captain G. Serrato, in both his individual and official capacities ("Defendant") will and hereby does move this Court for an order dismissing Plaintiff's First Amended Complaint, with prejudice, and striking portions of the First Amended Complaint pursuant to Federal Rule of Civil Procedure

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
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Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,** Defendants.	**Case No. 4:26-cv-08271-ASK** **[PROPOSED] ORDER GRANTING ADMINISTRATIVE MOTION — DAG LI TO ACCEPT SERVICE** Civil L.R. 7-11; Fed. R. Civ. P. 4(e)(1), 4(m); Cal. Code Civ. Proc. § 413.30 Judge: Hon. Ajay S. Krishnan Related: 4:26-cv-05953-ASK

Plaintiff has moved under Civil Local Rule 7-11, Federal Rule of Civil Procedure 4(e)(1) and 4(m), and California Code of Civil Procedure section 413.30 for an order directing Deputy Attorney General Haiyang A. Li to accept service of process on behalf of Defendant Santiago Meza-Gonzalez.

The Court has considered the motion, the supporting declaration, and the record. Defendant Jose Melano has been served. The AO 440 return filed as Dkt. 5-1 and entered as Document 12 establishes service on Melano at CHP South Sacramento on August 14, 2026. No Rule 4(l) return has been filed as to Meza-Gonzalez. The record further shows that Deputy Attorney General Li has represented Meza-Gonzalez and Melano in prior civil actions arising from the same November 1, 2024 incident, and that he is counsel of record for Captain G. Serrato in the related action before this Court, No. 4:26-cv-05953-ASK.

Delivery of the summons and operative complaint to the Deputy Attorney General who has represented this defendant throughout is a manner of service reasonably calculated to give actual notice. (Fed. R. Civ. P. 4(e)(1); Cal. Code Civ. Proc. § 413.30; *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950); *Rio Properties, Inc. v. Rio Int'l Interlink*, 284 F.3d 1007, 1016-17 (9th Cir. 2002).)

GOOD CAUSE APPEARING, IT IS ORDERED that:

1. Plaintiff's administrative motion is GRANTED.

2. Deputy Attorney General Haiyang A. Li is authorized and directed to accept service of process on behalf of Defendant Santiago Meza-Gonzalez in this action.

3. Plaintiff's delivery to Deputy Attorney General Li, by electronic mail at Haiyang.Li@doj.ca.gov and by first-class mail at 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, of (a) the issued summons as to Meza-Gonzalez (Dkt. 3), (b) the operative First Amended Complaint (Dkt. 5), and (c) the Order Setting Initial Case Management Conference and ADR Deadlines (Dkt. 4), shall constitute completed service on Defendant Santiago Meza-Gonzalez under Federal Rule of Civil Procedure 4(e)(1) and California Code of Civil Procedure section 413.30 as of the date of the email transmission.

4. Plaintiff shall file a proof of that delivery under Federal Rule of Civil Procedure 4(l) within seven (7) days of the email transmission.

5. Completed service on Defendant Jose Melano is unaffected by this Order.

IT IS SO ORDERED.

Dated: _____, 2026

_____

HON. AJAY S. KRISHNAN

United States Magistrate Judge

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI
Plaintiff

V.

SANTIAGO MEZA-GONZALEZ; JOSE MELANO; and DOES 1-10
Defendants

/

Case Number: 4:26-cv-08271-ASK

PROOF OF SERVICE

I hereby certify that on September 1, 2026, I served a copy of the attached

Plaintiff's Civil L.R. 7-11 Administrative Motion Directing DAG Haiyang A. Li to Accept Service for Meza-Gonzalez; Declaration; Exhibits A-C; [Proposed] Order,

by placing a copy in a postage paid envelope addressed to the person(s) hereinafter listed, by depositing said envelope in the United States Mail at San Jose, California:

(List Name and Address of Each Defendant or Attorney Served)

Haiyang A. Li, Deputy Attorney General
Office of the Attorney General
300 South Spring Street, Suite 1702
Los Angeles, CA 90013-1230
Haiyang.Li@doj.ca.gov
Counsel for Captain G. Serrato in the related action;
prior counsel for Meza-Gonzalez and Melano on this incident

Jose Melano, CHP #023054
California Highway Patrol, South Sacramento Area
6 Massie Court
Sacramento, CA 95823
Defendant (summons served August 14, 2026)

Santiago Meza-Gonzalez, CHP #023295
California Highway Patrol, Modesto Area
4030 Kiernan Avenue
Modesto, CA 95356
Defendant (courtesy copy; Rule 4 incomplete)

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI
v.
SANTIAGO MEZA-GONZALEZ et al.

Case Number: 4:26-cv-08271-ASK
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.



Brendan Ngwa Nforbi, In Propria Persona